



Equality Impact and Needs Analysis

Statement of Licensing Policy 2026 - 2031

Guidance notes

Things to remember:

Under the Public Sector Equality Duty (PSED) public authorities are required to have due regard to the aims of the general equality duty when making decisions and when setting policies. Understanding the affect of the council's policies and practices on people with different protected characteristics is an important part of complying with the general equality duty. Under the PSED the council must ensure that:

- Decision-makers are aware of the general equality duty's requirements.
- The general equality duty is complied with before and at the time a particular policy is under consideration and when a decision is taken.
- They consciously consider the need to do the things set out in the aims of the general equality duty as an integral part of the decision-making process.
- They have sufficient information to understand the effects of the policy, or the way a function is carried out, on the aims set out in the general equality duty.
- They review policies or decisions, for example, if the make-up of service users changes, as the general equality duty is a continuing duty.
- They take responsibility for complying with the general equality duty in relation to all their relevant functions. Responsibility cannot be delegated to external organisations that are carrying out public functions on their behalf.
- They consciously consider the need to do the things set out in the aims of the general equality duty not only when a policy is developed and decided upon, but when it is being implemented.

Best practice guidance from the Equality and Human Rights Commission recommends that public bodies:

- Consider all the [protected characteristics](#) and all aims of the general equality duty (apart from in relation to marriage and civil partnership, where only the discrimination aim applies).
- Use equality analysis to inform policy as it develops to avoid unnecessary additional activity.
- Focus on the understanding the effects of a policy on equality and any actions needed as a result, not the production of a document.
- Consider how the time and effort involved should relate to the importance of the policy to equality.
- Think about steps to advance equality and good relations as well as eliminate discrimination.
- Use good evidence. Where it isn't available, take steps to gather it (where practical and proportionate).
- Use insights from engagement with employees, service users and others can help provide evidence for equality analysis.

Equality analysis should be referenced in community impact statements in Council reports. Community impact statements are a corporate requirement in all reports to the following meetings: the cabinet, individual decision makers, scrutiny, regulatory committees and community councils. Community impact statements enable decision makers to identify more easily how a decision might affect different communities in Southwark and to consider any implications for equality and diversity.

The public will be able to view and scrutinise any equality analysis undertaken. Equality analysis should therefore be written in a clear and transparent way using plain English. Equality analysis may be published under the council's publishing of equality information, or

be present with divisional/departmental/service business plans. These will be placed on the website for public view under the council's Publications Scheme. All Cabinet reports will also publish related

Equality analysis should be reviewed after a sensible period of time to see if business needs have changed and/or if the effects that were expected have occurred. If not then you will need to consider amending your policy accordingly. This does not mean repeating the equality analysis, but using the experience gained through implementation to check the findings and to make any necessary adjustments.

Engagement with the community is recommended as part of the development of equality analysis. The council's Community Engagement Division and critical friend, the Forum for Equality and Human Rights in Southwark can assist with this (see section below on community engagement and www.southwarkadvice.org.uk).

Whilst the equality analysis is being considered, Southwark Council recommends considering implications arising from socio-economic disadvantage, as socio-economic inequalities have a strong influence on the environment we live and work in. As a major provider of services to Southwark residents, the council has a policy commitment to reduce socio-economic inequalities and this is reflected in its values and aims. For this reason, the council recommends considering impacts/needs arising from socio-economic disadvantage in all equality analyses, not forgetting to include identified potential mitigating actions. **The Council has adopted the Socio-Economic Duty as part of its overall equality, diversity and inclusion policy commitments in the Southwark Equality Framework.** This requires us to ensure we do not make any conditions worse for those experiencing socio-economic disadvantage through our policies and practices.

Section 1: Equality impact and needs analysis details

Proposed policy/decision/business plan to which this equality analysis relates		REVIEW OF SOUTHWARK'S STATEMENT OF LICENSING POLICY 2026 - 2031.			
Equality analysis author		Esther Jones			
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Department		Environment and Leisure	Division	Licensing	
Period analysis undertaken		December 2025			
Date of review (if applicable)					
Sign-off		Position		Date	

Section 2: Brief description of policy

1.1 Brief description of policy

The Licensing Act 2003 (The Act) came into effect on the 24th November 2005 combining numerous pieces of legislation which previously facilitated sale and supply of alcohol, provision of late night food, several forms of entertainment, including theatre and cinema.

With this, the administration of the legislation was passed to the local authorities with a requirement to grant a licence unless reliable information to refuse the application was presented.

During the preparation of the legislation certain risks were identified and parliament prescribed four objectives which applicants and licence holders had to continuously address and show mitigation within an application before a licence could be considered.

The objectives:-

- Prevention of crime and disorder:
- Public safety
- Prevention of public nuisance
- Protection of children from harm

Section 5 of 'The Act' requires the Licensing Authority at least 5 years to review and publish a Licensing Policy, Southwark Council published its last policy in 2021

Over time legislative changes within 'The Act', with other legislation or social need will highlight changes needed to the policy. The government periodically produce statutory guidance under Section 182 of 'The Act' the latest version being issues in February 2025.

The Act provides for the three types of authority with a requirement to vary, transfer or review when required.

Premises Licence Part 3 application
Club Personal Licence Part 4 Application
Personal Licence Part 6 Application

Subject to the applicant meeting the requirements within the act officers and elected officers will follow the legislation and this policy to make a determination
Changes to the current policy have been assessed to see if they impact on any 'protected characteristics' of an applicant, persons wishing to use facilities of the licence, or residents of the borough.

The Licensing Authority is confident that it would never deliberately make policy decision that would do this. One of the aims of the consultation will be to identify any groups that may be negatively impacted, whether subjectively or objectively

Section 3: Overview of service users and key stakeholders consulted

2. Service users and stakeholders	
Key users of the department or service	• Premises licence holders • Personal licence holders • Legal representatives • Licensing consultants • Members of the public
Key stakeholders were/are involved in this policy.	The consultation was introduced by email and sent to: • The chief officer of police for the licensing authority's area. • The fire authority for that area. • Representatives of holders of premises licences • Representatives of holders of club premises certificates • Representatives of holders of personal licences • Representatives of businesses and residents in its area. • LBS Councillors • Neighbouring authorities • All Faith Groups and Community Groups from the Southwark Community • All current licence holders • Business Information Districts - Responsible authorities

Section 4: Pre-implementation equality impact and needs analysis

This section considers the potential impacts (positive and negative) on groups with 'protected characteristics', the equality information on which this analysis is based and any mitigating actions to be taken, including improvement actions to promote equality and tackle inequalities. An equality analysis also presents as an opportunity to improve services to meet diverse needs, promote equality, tackle inequalities and promote good community relations. It is not just about addressing negative impacts.

The columns include societal issues (discrimination, exclusion, needs etc.) and socio-economic issues (levels of poverty, employment, income). As the two aspects are heavily interrelated it may not be practical to fill out both columns on all protected characteristics. The aim is, however, to ensure that socio-economic issues are given special consideration, as it is the council's intention to reduce socio-economic inequalities in the borough. Key is also the link between protected characteristics and socio-economic disadvantage, including experiences of multiple disadvantage.

Socio-economic disadvantage may arise from a range of factors, including:

- poverty
- health
- education
- limited social mobility
- housing
- a lack of expectations
- discrimination
- multiple disadvantages

The public sector equality duty (PSED) requires us to find out about and give due consideration to the needs of different protected characteristics in relation to the three parts of the duty:

1. Eliminating discrimination, harassment and victimisation
2. Advancing equality of opportunity, including finding out about and meeting diverse needs of our local communities, addressing disadvantage and barriers to equal access; enabling all voices to be heard in our engagement and consultation undertaken; increasing the participation of underrepresented groups
3. Fostering good community relations; promoting good relations; to be a borough where all feel welcome, included, valued, safe and respected.

The PSED is now also further reinforced in the two additional Fairer Future For All values: that we will

- Always work to make Southwark more equal and just
- Stand against all forms of discrimination and racism

Age - Where this is referred to, it refers to a person belonging to a particular age (e.g. 32-year-olds) or range of ages (e.g. 18 - 30-year-olds).	
Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.	Potential Socio-Economic impacts/needs/issues arising from socio-economic disadvantage (positive and negative)
Any policy reviews must take into account protected characteristics. There is anecdotal evidence to suggest that younger independent businesses may be run by younger people. The licensing authority looks to encourage the diversity of local businesses, which would include businesses run by younger entrepreneurs.	Policy review is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises adding an additional financial burden to some businesses, which is likely passed on to customers
Equality information on which above analysis is based	Socio-Economic data on which above analysis is based
The last review was in 2018 with no recent update is in the 2020-2022 which is within the 2021 policy document. Southwark is densely populated with a young ethnically diverse population. The ONS mid year population estimate for 2018 estimated the population of Southwark to be 314,200 with 54.6% under 35 years of age. The many regeneration projects include in the Aylesbury estate; Borough, Bankside and London Bridge; Canada Water; Elephant and Castle; Nunhead; and Peckham. The review will not impact on the operator/licence holder's operation and therefore with other changes will have no direct effect on residents and visitors to the borough	Southwark is a diverse Borough with people from a wide range of ethnicities and backgrounds Southwark continues to face the complex social, health and economic needs of an inner-city population. Southwark's level of deprivation has improved in recent years but still remains the 12th most deprived London borough (40th nationally) (2015). Southwark is meeting these challenges and is fast becoming one of London's most dynamic boroughs with 40 per cent of the area currently the subject of physical regeneration projects and with developments valued at around £4 billion.
Mitigating and/or improvement actions to be taken	
Whilst the last census was in 2021, we will work on the data within the last policy and continue to monitor update and assess as available.	

Disability - A person has a disability if s/he has a physical or mental impairment which has a substantial and long-term adverse effect on that person's ability to carry out normal day-to-day activities.

Please note that under the PSED due regard includes:

Giving due consideration in all relevant areas to "the steps involved in meeting the needs of disabled persons that are different from the needs of persons who are not disabled include, in particular, steps to take account of disabled persons' disabilities." This also includes the need to understand and focus on different needs/impacts arising from different disabilities.

Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.

Potential socio-economic impacts/ needs/issues arising from socio-economic disadvantage (positive and negative)

[Research shows](#) that in London overall, families that include a disabled person are more likely to be in poverty than families without a disabled person. The research shows that there is a clear trend between the level of deprivation in a neighbourhood and the proportion of the population that is Disabled.

Among London's 10% most deprived neighbourhoods, the average proportion of the population who are Disabled is 15.5%. By contrast, in the 10% least deprived neighbourhoods in London, Disabled people make up an average of 11.7% of the population.

Data from the census shows that half (51%) of all households in Southwark are disadvantaged in any one or more of the following dimensions: employment, education, health and disability, and housing.

Given the above correlation, there is a possibility that a higher percentage of people in circumstances of deprivation to have a disability, therefore this group of people will be less likely to be able to mitigate the possible impact of reduction in opening hours (less likely to have access to computers, printers and quiet warm places to do homework, research and general studying) and therefore they might be more disproportionately affected.

Policy review is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises adding an additional financial burden to some businesses, which is likely passed on to customers.

No specific impacts have been identified or raised in relation to this. It is acknowledged that businesses should make 'reasonable adjustments' to accommodate people identifying with having a disability. No health impacts are identified

Equality information on which above analysis is based	Socio-economic data on which above analysis is based
In 2021 census day, almost 1 in 6 (14%) of Southwark residents reported being disabled (based on 2010 Equality Act definitions), a similar proportion to London and England. of these people, over two-fifths (41%, 17,400) reported that their day-to-day activities were limited a lot 18,000 Southwark residents reported having long-term health conditions that did not affect their day-to-day activities A quarter (25%) of all households in Southwark had someone with a disability: 21% of households had 1 disabled member, and 4% had 2 or more disabled members	N/A
Mitigating and/or improvement actions to be taken	
N/A	

Gender reassignment: - The process of transitioning from one gender to another. Gender Identity: Gender identity is the personal sense of one's own gender. Gender identity can correlate with a person's assigned sex or can differ from it.	
Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/ needs/issues arising from socio-economic disadvantage (positive and negative)
This policy review will not specifically benefit or disadvantage non-binary residents or licence holders.	Policy review is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises adding an additional financial burden to some businesses, which is likely passed on to customers
Equality information on which above analysis is based.	Socio-economic data on which above analysis is based

Census Data	N/A
Mitigating and/or improvement actions to be taken	
N/A	N/A

Marriage and civil partnership – In England and Wales marriage is no longer restricted to a union between a man and a woman but now includes a marriage between a same-sex couples. Same-sex couples can also have their relationships legally recognised as 'civil partnerships'. Civil partners must not be treated less favourably than married couples and must be treated the same as married couples on a wide range of legal matters. (Only to be considered in respect to the need to eliminate discrimination.)	
Potential impacts (positive and negative) of proposed policy review this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/ needs/issues arising from socio-economic disadvantage (positive and negative)
Any changes to the Licensing (Entertainment and Alcohol) policy will have no impact on marital or civil partnership.	Policy review is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises adding an additional financial burden to some businesses, which is likely passed on to customers
Equality information on which above analysis is based	Socio-economic data on which above analysis is based
Census Data	N/A
Mitigating or improvement actions to be taken	
N/A	N/A

Pregnancy and maternity - Pregnancy is the condition of being pregnant or expecting a baby. Maternity refers to the period after the birth, and is linked to maternity leave in the employment context. In the non-work context, protection against maternity discrimination is for 26 weeks after giving birth, and this includes treating a woman unfavourably because she is breastfeeding.	
Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/ needs/issues arising from socio-economic disadvantage (positive and negative)

Licensing Policy must not disadvantage pregnant women or those on maternity leave. No impacts are therefore identified.	Policy review is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises adding an additional financial burden to some businesses, which is likely passed on to customers
Equality information on which above analysis is based	Socio-economic data on which above analysis is based
Census Data	N/A
Mitigating and/or improvement actions to be taken	
N/A	N/A

Race - Refers to the protected characteristic of Race. It refers to a group of people defined by their race, colour, and nationality (including citizenship) ethnic or national origins. N.B. Gypsy, Roma and Traveller are recognised racial groups and their needs should be considered alongside all others

Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/ needs/issues arising from socio-economic disadvantage (positive and negative)
The cultural makeup of the Borough is wide and varied. The Licensing Authority would want to encourage this diversity. The policy would never be intended to prevent any particular ethnic group from applying and holding a licence or from enjoying the authorised activities at a licenced (Entertainment and Alcohol) premises. It should however be noted that the Borough is continually changing in terms of regenerating community areas. This has continued to give opportunities for places for social gatherings as new buildings are completed and older facilities repurposed for local amenities. Policy changes not intended to restrict any premises from opening, or remaining open. There may be cross-overs with Planning and Regeneration that may have to address this risk.	<u>The English Indices of Deprivation 2019</u> show that: • Asian people as a whole (15.7%) were the most likely out of all ethnic groups to live in the 10% most deprived neighbourhoods, followed by Black people (15.2%) • White people were the least likely to live in them (9.0%) • Out of the 18 individual ethnic groups, people from the Pakistani (31.1%) and Bangladeshi (19.3%) groups were the most likely to live in them • People from the Indian (7.6%), White Irish (8.1%) and White Other (8.2%) ethnic groups were the least likely to live in them

	Policy review is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises adding an additional financial burden to some businesses, which is likely passed on to customers
Equality information on which above analysis is based	Socio-economic data on which above analysis is based
Census Data	N/A
Mitigating and/or improvement actions to be taken	
N/A	N/A

Religion and belief - Religion has the meaning usually given to it but belief includes religious and philosophical beliefs including lack of belief (e.g. Atheism). Generally, a belief should affect your life choices or the way you live for it to be included in the definition.	
Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/ needs/issues arising from socio-economic disadvantage (positive and negative)
Policy review will have no apparent benefit or disadvantage to any particular religion or belief. It should be noted that places of worship are exempt from licensing restrictions, as long as they are not being used for non-religious, commercial purposes.	Policy review is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises adding an additional financial burden to some businesses, which is likely passed on to customers
Equality information on which above analysis is based	Socio-economic data on which above analysis is based
Census Data	N/A
Mitigating and/or improvement actions to be taken	
N/A	N/A

Sex - A man or a woman.	
Potential impacts (positive and negative) of proposed policy review; this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/ needs/issues arising from socio-economic disadvantage (positive and negative)
Policy review will have no apparent benefit or disadvantage to any particular sex.	Policy review is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises adding an additional financial burden to some businesses, which is likely passed on to customers
Equality information on which above analysis is based	Socio-economic data on which above analysis is based
Census Data	N/A
Mitigating and/or improvement actions to be taken	
N/A	

Sexual orientation - Whether a person's sexual attraction is towards their own sex, the opposite sex or to both sexes	
Potential impacts (positive and negative) of proposed policy; this also includes needs in relation to each part of the duty.	Potential socio-economic impacts/ needs/issues arising from socio-economic disadvantage (positive and negative)
Concerns are ongoing on the impacts that face LGBTIQ+ premises remaining open to provide safe spaces for that community. Significant numbers of premises have closed across London in recent years, yet this is likely to be as a result of commercial redevelopment, rather than a direct intention to reduce the number of such venues. Southwark seeks to protect all such venues. Licensing Policy changes are not intended to prevent any particular group based on LGBTIQ+ self-identification from enjoying alcohol or entertainment at night.	Policy review is not intended to benefit or disadvantage people because of their socioeconomic status. It is however acknowledged that there is a continuing trend for increases in business rates and rent costs to all premises adding an additional financial burden to some businesses, which is likely passed on to customers

Paragraph 162 of the Southwark Statement of Licensing Policy 2021 to 2026 currently under review, states that Members of a Licensing Sub Committee may take into account factors when granting additional licences within a CIA. Members may take steps to grant a premises licence outside of the recommendations of the Policy to promote the use of licensed premises by groups that are not well serviced with licensed premises within the Borough. The groups referenced are those within a protected characteristic.	
Equality information on which above analysis is based	Socio-economic data on which above analysis is based
Census Data	N/A
Mitigating and/or improvement actions to be taken	
N/A	

Human Rights There are 16 rights in the Human Rights Act. Each one is called an Article. They are all taken from the European Convention on Human Rights. The Articles are The right to life, Freedom from torture, inhuman and degrading treatment, Freedom from forced labour , Right to Liberty, Fair trial, Retrospective penalties, Privacy, Freedom of conscience, Freedom of expression, Freedom of assembly, Marriage and family, Freedom from discrimination and the First Protocol
Potential impacts (positive and negative) of proposed policy review.
Diversity is encouraged to ensure a licensing regime that is representative of and meets the needs of the borough's communities. The policy review will not negatively impact residents and business owners. It is acknowledged that increases in rents and rates may result in increased charges and those costs may be passed on to customers. Therefore, those on lower incomes may be adversely impacted on a socio-economic basis.
Information on which above analysis is based
Census Data.
Mitigating and/or improvement actions to be taken
N/A

Section 5: Further equality actions and objectives

5. Further actions			
Based on the initial analysis above, please detail the key mitigating and/or improvement actions to promote equality and tackle inequalities; and any areas identified as requiring more detailed analysis.			
Number	Description of issue	Action	Timeframe
1	Review of Policy	Review	5 Years

5. Equality and socio-economic objectives (for business plans)				
Based on the initial analysis above, please detail any of the equality objectives outlined above that you will set for your division/department/service. Under the objective and measure column please state whether this objective is an existing objective or a suggested addition to the Council Plan.				
Objective and measure	Lead officer	Current performance (baseline)	Targets	
			Year 1	Year 2
N/A	N/A	N/A		

Implementation Equality Impact and Needs Analysis